

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2015-2646, 2015-4999 & 2016-2283

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO, THE CERTIFICATION TO PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO, AND THE APPLICATION FOR LICENSURE TO PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF DANIELLE HACKETT, LICENSE NO. LPC 12546, CERTIFICATION NO. CAC II 8007, AND LICENSE NO. LAC (PENDING).

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselors and the State Board of Addiction Counselor Examiners (together, "Boards") and Danielle Hackett ("Applicant") as follows:

1. On or about August 13 2014, Applicant applied for a license to practice as a professional counselor ("LPC") in the State of Colorado ("LPC Application"). Applicant received her LPC license on July 23, 2015. On or about July 1, 2015, Applicant applied for a certificate to practice addiction counseling ("CAC II") in the State of Colorado ("CAC II Application"). Applicant received her CAC II certification on January 22, 2016. On or about December 24, 2015, Applicant applied for a license to practice addiction counseling ("LAC") in the State of Colorado ("LAC Application"). and her request is currently pending.

2. The Boards have jurisdiction over Applicant, her LPC license, her CAC II certification, the LAC Application, and the subject matter of this Stipulation and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial applications for licensure as a LPC, certification as a CAC II, and the LAC Application in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2015-2646, 2015-4999 and 2016-2283. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Applicant, as of the effective date of this Order.

4. Applicant admits the following:
- a. On or about August 13, 2014, Applicant applied for licensure as a LPC in the State of Colorado.
 - b. On the LPC Application, Applicant answered "yes" to question 1, which states: "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"
 - c. On the LPC Application, Applicant answered "yes" to question 2, which states: "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"
 - d. On the LPC Application, Applicant answered "yes" to question 4, which states: "Have you ever voluntarily surrendered a certification/license to practice psychotherapy in any state?"
 - e. On or about July 1, 2015, Applicant applied for a certificate to practice as a CAC II in the State of Colorado.
 - f. On the CAC II Application, Applicant answered "yes" to question 1, which states: "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"
 - g. On the CAC II Application, Applicant answered "yes" to question 2, which states: "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"
 - h. On the CAC II Application, Applicant answered "yes" to question 4, which states: "Have you ever voluntarily surrendered a certification/license to practice psychotherapy in any state?"
 - i. On or about December 24, 2015, Applicant applied for a license to practice as a LAC in the State of Colorado, and her request is currently pending.
 - j. On the LAC Application, Applicant answered "yes" to question 1, which states: "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"

k. On the LAC Application, Applicant answered "yes" to question 2, which states: "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"

l. On the LAC Application, Applicant answered "yes" to question 4, which states: "Have you ever voluntarily surrendered a certification/license to practice psychotherapy in any state?"

m. On or about September 2, 2011, Applicant was licensed as a clinical professional counselor in Maine, having been issued license number CC3810, which expired on September 30, 2013.

n. On or around March 24, 2014, Applicant entered into a Consent Agreement with the State of Maine, Board of Counseling Professionals Licensure ("Maine Board") regarding Complaint No. 2013-COU-9293. While her license was active in Maine, Applicant admitted to engaging in a Level 2 sexual activity dual relationship with a prison inmate client and surrendered her license. If Applicant should ever seek licensure with the Maine Board at any time in the future, she agreed to supervised probation for two (2) years and continuing education hours in ethics and ethical decision-making.

o. Pursuant to Maine's Board Rules, "Level 2 sexual activity" includes "words, gestures, expressions, or behaviors ... that are seductive, sexually suggestive or sexualized."

p. Applicant admitted to disciplinary action in another jurisdiction.

q. On July 23, 2015, Applicant entered into a Stipulation and Final Agency Order with the LPC Board in case number 2015-2646 ("2015 Order") that included the terms as outlined below.

r. On January 22, 2016, Applicant entered into and is currently under a Stipulation and Final Agency Order with the LPC and CAC Boards in case numbers 2015-2646 and 2015-4999 ("January 2016 Order") that includes the terms as outlined below. This Order is a continuation of the January 2016 Order and is intended to also include Applicant's LAC Application and case number 2016-2283.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Boards find that the above conduct is a violation of §12-43-222(2), C.R.S.

6. By virtue of the admissions contained in paragraphs 4 and 5 above, Applicant specifically agrees to maintain her LPC license and CAC II certificate as previously granted with the limitations as outlined below, and to accept a LAC license subject to the terms and conditions

outlined below. Applicant further agrees that the CAC Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a LAC license. Applicant consents to the following limitations to her LAC license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this LAC license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's LPC license, CAC II certificate, and LAC license shall be placed on probation for a minimum period of two (2) years commencing from the effective date of the 2015 Order, the date Applicant was approved for her LPC license, or the date Applicant entered into a contract with Peer Assistance Services ("PAS"), whichever date was later. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Applicant is not practicing as a professional or addiction counselor or engaged in the practice of professional and/or addiction counseling in the State of Colorado;
- b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraph 8 of this Order; and
- c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

8. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with PAS for a minimum period of two (2) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later. If Applicant has not already done so, Applicant must enter into a contract with PAS within fourteen (14) days from the effective date of this Order, or Applicant agrees to cease practice after fourteen (14) days until such time as Applicant enters into a contract with PAS.

- a. Urine/Blood Screens. If required as a term of her contract with PAS, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Boards, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

- b. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS contract signed by Applicant.
- c. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Boards upon its request. Applicant shall keep all releases current and in effect.
- d. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Boards by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Boards to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Boards of completion of treatment.
- e. Withdrawal from Program. Applicant must immediately notify the Boards in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

CONTINUING EDUCATION

9. During the period of probation, Applicant must successfully complete at least twenty (20) hours of Board-approved professional continuing education ("CE") courses each year in the areas of ethics, ethical decision making, dual relationships, boundaries, and treating inmate populations. These CE hours shall be completed in-person, and may not be online classes. Applicant shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Applicant shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure or certification requirements.

TERMS AND CONDITIONS

10. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Boards.

13. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Boards of the change of address within 30 days of the effective date of such change.

14. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

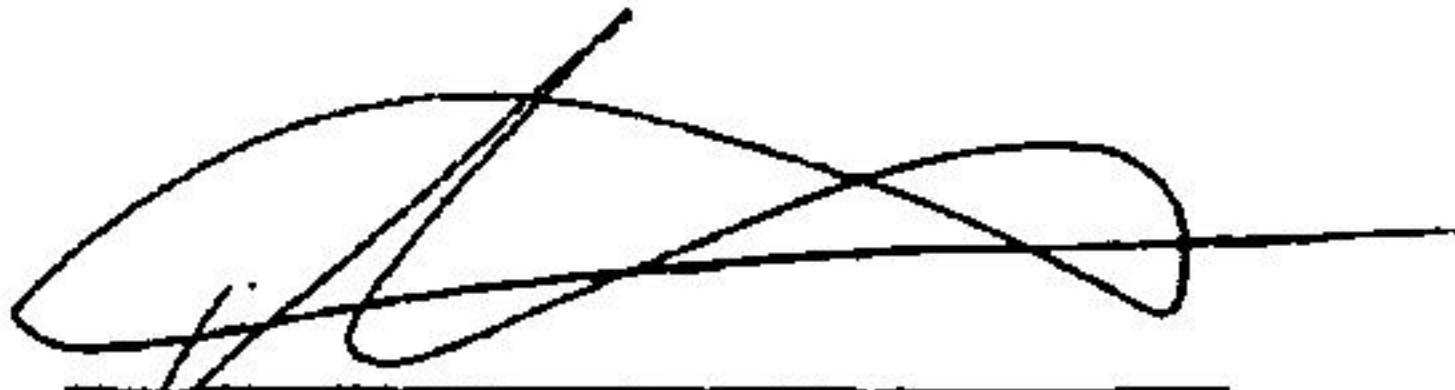
19. This Order constitutes the entire agreement between Applicant and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Boards, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Boards. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Boards.

21. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

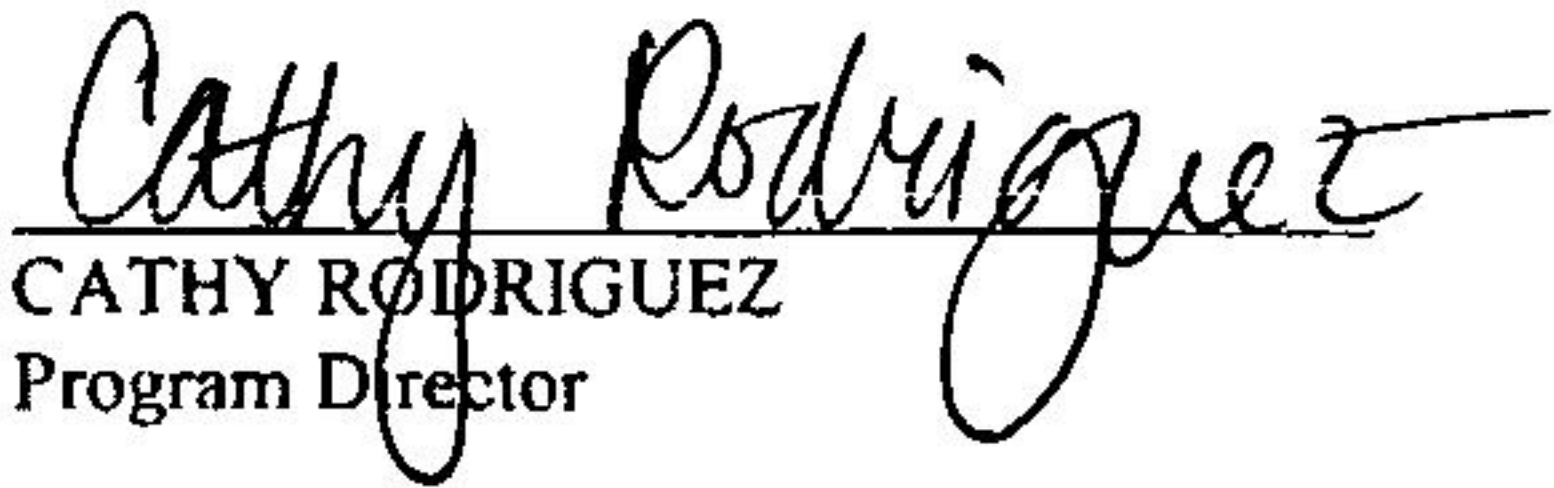
APPLICANT



DANIELLE HACKETT
LPC NO. 12546
CAC II NO. 8007
LAC NO. (PENDING)

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND BOARD OF
ADDICTION COUNSELOR EXAMINERS


CATHY RODRIGUEZ
Program Director

Effective this 21 day of
June, 2016.